

Tuesday

Colorado Daily

Today's
WeatherCool, showers
Highs mid 50sTomorrow's
WeatherChance of rain
Highs mid 60s

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Airing their concerns

Neighbors of cement plant worry about health risks

By BRIAN HANSEN
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Prompted by the fervent, and persistent concerns of a local air-quality advocacy group, corporate officials from Houston, Texas-based cement manufacturer Southdown Inc. have announced that they will visit Boulder County next week to address the environmental and health impacts of their heavily scrutinized facility near Lyons.

The visit will mark the second time in recent months that Southdown corporate officials have traveled to here to address a barrage of complaints and concerns leveled against the company's local cement manufacturing facility.

Dust in the wind

For months, residents living downwind of Southdown's Boulder County plant have been

complaining about large, potentially toxic clouds of fugitive dust that have been escaping from the cement manufacturing facility during high winds. Although Southdown has attempted to address its fugitive dust problem with a host of new procedures and costly capital improvements, those who live downwind of the plant contend that the problems there continue.

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"We still see these big plumes of dust coming from the plant, and we have to wonder what we're breathing," said Richard Cargill, a member of the St. Vrain Valley Community Watchdogs. "We've been asking repeatedly for a characterization (of the escaping dust), but everyone's been reluctant to provide one. We have to wonder why everyone's so reluctant to tell us what's blowing into our lungs."

An informational meeting on the matter is set for 7:30 p.m. on Oct. 14 at Hygiene Elementary School, 11968 N. 75th St., Hygiene. Representatives from Southdown, state and county health departments, and the Environmental Protection Agency are expected to attend. The public is welcome.

Southdown, which purchased the plant just north of Hygiene Road in 1984, is one of the largest cement manufacturers in the world. The company's Lyons facility, which consists of about 2,500 acres, produces about 525,000 tons of cement annually, according to company documents.

The plant also produces a lot of dust — about 100 tons of "cement kiln dust," or CKD, each week, according to Steve Mossberg, the plant's facility compliance manager.

The toxicity of CKD, a by-product of the cement manufacturing process, is hotly disputed among industry analysts, government regulators and environmental advocacy groups. In its 1993 report to Congress, the EPA characterized CKD as a "high volume, low toxicity" waste that does not present significant risks to people or the environment.

However, the EPA declared that when infused with water, CKD may produce a leachate with an alkalinity high enough to be classified as hazardous waste. The EPA has also documented that CKD may leach certain hazardous heavy metals typically present in its composition into nearby groundwater.

Most cement plants — including Southdown's Lyons facility — dispose of their accumulated CKD by dumping it into unlined on-site pits. Earlier this summer, Southdown's Mossberg acknowledged that this disposal practice was responsible for the dust plumes noted by Cargill and the Watchdogs.

"The wind would come over this hill, create a negative pressure area, and lift the dust right up," Mossberg explained last week.

After a barrage of Watchdog complaints, photographic evidence of the fugitive dust plumes, and a few probing newspaper articles, Southdown agreed to address the problem. The pit, which was nearly full at the time, was covered with a six-inch cap of shale in June.

Since then, Mossberg said, the company's "improved" CKD disposal practices have drastically reduced fugitive dust emissions. A dust-suppressing sprinkler system has been installed around the 20-acre refuse pit currently in use at the facility, he said.

But while Cargill and the Watchdogs acknowledge that the new disposal practice has reduced the frequency of the fugitive dust clouds, they worry that the sprinkler system will produce a whole new category of

environmental and health hazards.

From bad to worse

"What's the chemical composition of this stuff they're watering down?" Cargill asked. "What's getting into the water table?"

Bill Freeze, director at large of the Huron Environmental League in Alpena, Mich., is asking these same questions. Freeze's group opposes the Lafarge cement plant in Alpena, which he says has racked up in excess of 500 EPA violations and \$13 million in fines. And Alpena's experiences with CKD, he said, should serve as a warning to Boulder County residents and policy-makers.

"We've got an 80-acre pile of CKD that's been estimated to contain 25,000 pounds of arsenic, 1.5 tons of mercury and very high levels of aluminum," he said. "It's filled with heavy metals. It's leaching into our drinking water."

"The regulators all wear moon suits when they're out there," he added.

Freeze said that the EPA has been "dragging its feet" in implementing new restrictions governing CKD management.

"It takes lawsuits to get them to do anything about it," Freeze said.

And as it turns out, Southdown is no stranger to lawsuits — a revelation that hardly pacified the Watchdogs' fears.

"We dug a little deeper and found that an Ohio group

is suing Southdown for \$50 million," said Cargill. "How does that make us feel? The more we dig, the more dirt we seem to find on this company."

Southdown's legal problems at its Fairborn, Ohio, plant began to heat up in 1993, when the Greene Environmental Coalition sued the company in federal court for violations of the Clean Water Act. The coalition alleged that a 500-acre CKD dump site owned by the company had been leaching heavy metals into a tributary of the Mad River for nearly five years. Verified scientific analysis revealed that a number of toxic heavy metals, including arsenic, were in fact flowing into the tributary.

A federal judge ordered Southdown to develop a remediation plan to stop the unlawful discharge.

It never did. Instead, without notice, Southdown secretly transferred the site to two "hastily formed corporations of dubious financial capabilities," the coalition said. According to Southdown's Securities and Exchange 10-Q report, "...the Company sold the property that is the subject of these lawsuits to two independent third parties. The property was sold 'as is, where is,' and the company assumed no obligations to remediate the property ... Also, since the company no longer owns this property, the Company believes it should not have ongoing obligation under the Clean Water Act..."

Ohio residents are outraged by Southdown's actions.

"This is the first attempt that we know of by anyone in the United States to

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...Company faced lawsuits

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circumvent the public health and water quality protections of the Clean Water Act by trying to 'secretly sell away' their liability," said Michael Jones, a Greene County businessman.

While the Watchdogs are trying not to jump to any conclusions, their concerns have not been assuaged by the news coming out of Ohio.

"If this is their modus operandi, how much trust can you put in the local people we're dealing with now?" wondered Sidna Leavenworth, a member of the group. "What are we dealing with here? Often, what the head office wants is what disseminates down."

In addition to the continuing fugitive dust problem and concerns regarding polluted groundwater, the Watchdogs are also worried about Southdown's recently approved expansion plans, which, according to the Colorado Department of Health's Air Pollution Control Division, will allow the company to release an additional 10 tons of PM-10 (particulate matter less than 10 micrometers in diameter) and 20 tons of TSP (total suspended particulates) into the air annually.

A good neighbor?

Although it acknowledged these very increases on its permit application, Southdown claimed in a recent newsletter that particulate emissions resulting from the soon-to-be implemented expansion will in fact be "dramatically improved." Because it's "giving up" a host of old, "grandfathered" emissions (that by law never had to be accounted for), the company says that the "net" result of the expansion will be "dramatically reduced emissions."

This is possible, explained Mossberg, because of a regulatory accounting system known as "netting out."

"When the plant was first built we didn't have to account for all of the particulates coming out of (the old quarry areas)," he said. "You give up your

emissions in one place and increase them in another. As long as they don't 'net out' and go above a certain limit, you're OK."

"In the long run, this is kind of a paperwork exercise, but the community is going to be better off," he said.

While Southdown's Mossberg declined to comment on the company's situation in Ohio or other pending litigation, he emphasized three points. Firstly, he said, the company's new sprinkler system and two recently permitted major operational changes will dramatically reduce particulate emissions from the facility. Secondly, he said, CKD is not toxic and poses no threats to human health or the environment. And most importantly, Mossberg said, Southdown wants to be a "good neighbor" to the community.

"We didn't have a lot of neighbors here 30 years ago, but the area is growing," he said. "If you're not a good neighbor in Boulder County, it's real difficult."

For more information on the upcoming "informational meeting," call the Colorado Department of Public Health's Air Pollution Control Division at (303)692-2000.

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